

#	Case Name	
1	Alonso vs. Barrera 2025-01497561	Motion to Confirm Offsets Defendant/cross-complainant Emilia Barrera’s motion to confirm offsets is denied. Barrera moves for an order confirming she is entitled to \$708,887 in offsets, and that she may apply this amount as a “credit bid in a purchase of any interest the Plaintiff may hold in the Property.” The general partition statute is found in CCP sections 872.01 to 874.240. Under the general partition statute: the “interests of the parties, plaintiff as well as defendant, may be put in issue, tried, and determined in the action.” (Code Civ. Proc., § 872.610.) At trial, the court must first determine whether plaintiff has the right to partition. (Code Civ. Proc., § 872.710, subd. (a).) <i>“If the court finds that the plaintiff is entitled to partition, it shall make an interlocutory judgment that determines the interests of the parties in the property and orders the partition of the property and, unless it is to be later determined, the manner of partition.”</i> (Code Civ. Proc., § 872.720, emphasis added.) The court conducts a “final accounting” to determine the “charges and credits upon each co-tenant’s interest.” “Credits include expenditures in excess of the co-tenant’s fractional share for necessary repairs, improvements that enhance the value of the property, taxes, payments of principal and interest on mortgages, and other liens, insurance for the common benefit, and protection and preservation of title.” (See <i>Wallace v. Daley</i> (1990) 220 Cal.App.3d 1028, 1035–1036; Miller & Starr, Cal. Real Est. (4th ed.) § 11:15 [“After the trial, the court determines the interests of the various parties and the priority of all liens”].) By this motion, Barrera attempts to put the cart before the horse. The Court finds it would be premature to “confirm offsets” and declines to rule on the issue of credits and offsets before the issue of partition has been determined. Further, the credits and offsets sought by both sides is not properly determined by law and motion, or by the “supplemental declarations.” Plaintiff shall give notice of the ruling.

		Case Management Conference Order to Show Cause re: Dismissal re: Default Judgment Order to Show Cause re: Dismissal for Failure to Serve
2	Bowie vs. NuEyes Technologies, Inc. 2025-01501793	Motion to Strike Answer Off Calendar
3	Brainard vs. Brainard 2025-01499684	Motion to Compel Answers to Form Interrogatories Motion to Compel Answers to Special Interrogatories Motion to Compel Production Motion to Deem Facts Admitted Defendant Bartley Thomas Brainard's unopposed motions to compel responses from Plaintiff Bradley Alan Brainard to his form interrogatories, set one, special interrogatories, set one, and request for production of documents, set one, are granted. Plaintiff is ordered to serve verified responses without objection to Defendant's discovery requests within 20 days of the notice of the ruling. Defendant's unopposed motion to deem facts admitted in response to his requests for admission propounded on Plaintiff is also granted. On 12/17/25, Defendant electronically served Form Interrogatories, Special Interrogatories, Requests for Production and Requests for Admission on Plaintiff. (Sternad Decl., ¶¶ 3, 24; Exs. 1, 7.) Defendant followed with a letter informing Plaintiff that he would not be allowing any extensions. (Sternad Decl., ¶ 4, Ex. 2.) As of the date of the filing of this motion (1/29/26), Plaintiff had not served any responses. (Sternad Decl., ¶ 7.) Plaintiff has not opposed these motions. Because Defendant demonstrated that the discovery requests were served on Plaintiff, the deadline has passed, and no responses were served or have been served as of the date of the hearing, orders compelling responses and production and deeming the requests for admission admitted are appropriate. (See Code Civ. Proc., §§ 2030.290, 2031.300, 2033.280.) The Court imposes monetary sanctions against Plaintiff in the amount of \$860.00 per motion (\$3,440.00 total) payable to Defendant and its